SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

Proceeding: Copper operations deposition.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Copper Operations Deposition Excerpts

Deposition taken September 19, 2025. Filed November 24, 2025 as District ECF No. 49-2, an attachment to Asterglen's opposition at District ECF No. 49.

The witness testified as Copper Kestrel's designated operations representative concerning terminal planning, the proposed expansion, the July 8 discussion, the July 18 audit response, the feasibility of reducing access, service interruption, and the $120,000 counterclaim. The witness prepared by reviewing operational schedules, communications, system reports, dispatch records, and finance entries and by speaking with personnel responsible for the relevant functions.

COUNSEL FOR ASTERGLEN: Please separate organizational knowledge from your personal recollection.

THE WITNESS: I participated in the July 8 call. For other topics I will identify the company materials or personnel that informed the answer.

COUNSEL FOR MERIDIAN: Meridian joins the stipulation preserving objections and requests that the witness distinguish Copper Kestrel's instructions from Meridian's independent understanding.

The witness was sworn. The participants agreed that the transcript could be used for motion practice subject to completeness, foundation, and admissibility objections. No party stipulated that a disputed statement occurred merely because a question recited it.

Examination — original deployment and expansion proposal

Q. How many locations were named in the April 15, 2024 Pilot License?

A. Twelve terminals.

Q. What did Copper Kestrel propose on June 3?

A. A change order adding twenty-nine terminals. If approved, the system would cover forty-one.

Q. Was that change order signed by Asterglen?

A. No. Commercial terms remained open.

Q. Why did Copper Kestrel proceed with technical preparation?

A. It had seasonal routing needs and wanted the additional sites ready if approval came. Asterglen's June 10 response permitted a controlled load test subject to written conditions. Copper Kestrel understood that some identifier creation and validation could occur during that process.

Q. Did the response say the twenty-nine sites were fully licensed for production?

A. Not in those words. It described testing conditions and continued review.

Q. By July 1, how many identifiers had been provisioned?

A. Forty-one.

Q. Did every identifier carry identical traffic?

A. No. Some had routine dispatch activity, some had testing traffic, and some had configuration checks. The event categories require context.

Q. Does Copper Kestrel contend technical provisioning alone changed the contract?

A. No. We rely on the communications and conduct, including the disputed July 8 permission.

Examination — Meridian's work

Q. What was Meridian's role?

A. Copper Kestrel retained Meridian under a June 14 statement of work to assist with integration, validation, and readiness milestones for the proposed locations. Copper Kestrel directed Meridian's work and paid its invoices.

Q. Was Asterglen a party to that statement of work?

A. No.

Q. Did Copper Kestrel tell Meridian that Asterglen had signed the June 3 change order?

A. No. We said approval was still being discussed.

Q. What instruction did Copper Kestrel give after the June 10 response?

A. Follow the testing conditions, monitor loads, document results, and avoid adding terminals beyond the forty-one contemplated configuration.

Q. Did Meridian decide whether an identifier was contractually licensed?

A. No. Meridian performed technical tasks. Copper Kestrel made operational decisions, and Asterglen controlled its own contractual position.

Q. Why does the statement of work matter to this dispute?

A. It helps explain what Meridian personnel were doing, what milestones they understood, and why they were on the July 8 call. It also relates to Asterglen's interference claim because Asterglen alleges Meridian encouraged use despite knowing the change order was unsigned.

Q. Does Copper Kestrel agree with that allegation?

A. No. We understood Meridian to be implementing our instructions within temporary permission and testing conditions.

Examination — July 8 recollection

Q. Describe what you personally heard on July 8.

A. Asterglen's project manager said, in substance, that we could continue the current activity while the paperwork was finished, provided we monitored the configuration. I understood “current activity” to include the existing forty-one-identifier setup.

Q. Did the manager use the phrase “production authorization”?

A. I do not recall that phrase.

Q. Did the manager say Section 9.2 was waived?

A. No.

Q. Did anyone sign an amendment during the call?

A. No.

Q. Asterglen's representative recalls permission only for a controlled test. Are you saying that testimony is false?

A. I am saying my recollection is different. The call was not recorded, and the notes are abbreviated. I cannot testify to what the Asterglen representative privately intended.

Q. Did Copper Kestrel send a follow-up stating that full production had been approved?

A. The follow-up referred to continuing the current test and completing paperwork. It did not use “full production.”

Q. Then the scope is disputed?

A. Yes. Copper Kestrel contends continued activity was permitted; Asterglen says only restricted testing was permitted.

Q. Is Copper Kestrel asking that your account be treated as an agreed fact?

A. No. It is my sworn recollection and the company's position.

Examination — July 18 audit response

Q. When did Copper Kestrel learn of the compliance audit?

A. Asterglen raised the July 18 audit after identifying forty-one provisioned terminal identifiers and questioning activity at the twenty-nine additions.

Q. What did Copper Kestrel do?

A. Operations asked the technical team to reconcile the audit list with authentication and routing data. We also began identifying which sessions could be ended without disrupting data integrity.

Q. Did Copper Kestrel refuse to reduce the configuration?

A. No. We disputed that the activity was unauthorized, but we did not state that reduction was impossible or that we would never perform it.

Q. Did Asterglen deliver a written Section 9.2 breach notice on July 18?

A. No.

Q. Did it prescribe a fifteen-day cure ending in early August?

A. No.

Q. Had Copper Kestrel completed its reconciliation by July 22?

A. Not fully. We were still separating active production sessions, test traffic, and dormant identifiers.

Q. Was a reduction plan available?

A. The technical group believed it could return to the twelve licensed terminals in approximately three business days if it could coordinate session closure and validation.

Q. Did Copper Kestrel communicate that estimate before the termination?

A. Not in a completed written cure proposal. The termination arrived before a formal cure process began.

Examination — immediate termination and demand

Q. What occurred on July 22?

A. Asterglen disabled the shared staging credential, declared immediate termination for material breach, and demanded $480,000.

Q. Did the communication provide fifteen calendar days to cure?

A. No. It provided zero days.

Q. Did it distinguish between termination and a demand for damages under Section 9.2?

A. It pursued both in the same communication. Our position is that each triggered the notice-and-cure requirement.

Q. How did Copper Kestrel respond?

A. We objected that the demand was premature, requested restoration needed for an orderly reduction, and began manual dispatch procedures. We also instructed Meridian to inventory open sessions and avoid creating new terminal identifiers.

Q. Did Copper Kestrel continue adding locations after July 22?

A. No. The technical activity concerned existing sessions, validation, mitigation, and reduction.

Q. Why did Meridian work through July 25?

A. To protect shipment data, assist with routing continuity, document the configuration, and help bring the environment back to twelve terminals. Asterglen characterizes some of those actions differently, but Copper Kestrel did not treat them as permission for new expansion.

Q. Did Copper Kestrel pay the $480,000 demand?

A. No. It denied liability and asserted the absence of contractual notice and cure.

Examination — three-business-day reduction

Q. Explain the three-business-day estimate.

A. The team developed a sequence: freeze new provisioning, map active sessions to locations, migrate necessary dispatch updates to the twelve licensed terminals, disable the twenty-nine disputed identifiers, and validate that records remained accessible. A controlled test later completed those steps within three business days.

Q. Was the test identical to every condition on July 22?

A. It used a preserved configuration and representative session data. No test can reproduce every live event, but the steps and timing were documented.

Q. Did the test require fifteen days?

A. No. It finished in three business days.

Q. Would Copper Kestrel have performed that reduction if it had received a proper notice?

A. The company position is yes, while preserving its disagreement that the prior activity breached the agreement. Cure could have occurred under protest.

Q. Did anyone at Asterglen ask Copper Kestrel to attempt that cure before disabling access?

A. Not through a written breach notice or defined cure instruction.

Q. Does the estimate prove that no business disruption would have occurred?

A. No. It shows technical feasibility within the contractual window. The manner of transition still affected cost and risk.

Q. Why is that distinction important?

A. Feasibility addresses Asterglen's futility contention; interruption damages address what happened after immediate disablement.

Examination — interruption ledger

Q. What amount does Copper Kestrel claim on its counterclaim?

A. $120,000.

Q. State the components.

A. Thirty-six thousand dollars for emergency dispatch labor, twenty-eight thousand for temporary routing services, twenty-four thousand in customer credits linked to delayed updates, and thirty-two thousand for technical restoration and validation.

Q. Were those amounts paid or merely forecast?

A. The ledger draws from payroll allocations, vendor invoices, approved credits, and internal technical cost entries. Some internal allocations are contested by Asterglen, but the total is not a projection of future loss.

Q. Does Copper Kestrel seek both the ledger total and duplicate reimbursement?

A. No. Any reimbursement or avoided cost must be credited.

Q. How does the amount relate to Asterglen's Count I?

A. Asterglen seeks $480,000 based on the asserted deployment and response. Copper Kestrel seeks $120,000 based on immediate disablement. If liability were found on both claims, the sums could present a setoff issue.

Q. Has that issue been adjudicated?

A. No. The counterclaim remains pending.

Q. Does the ledger resolve whether July 8 permission existed?

A. No. It proves claimed consequences after July 22, subject to causation and reasonableness.

Examination — overlap among pending matters

Q. Does Copper Kestrel's counterclaim involve Section 9.2?

A. Yes. It alleges that Asterglen terminated and disabled service without written notice and fifteen calendar days to cure.

Q. Does Asterglen's contract claim involve the same provision?

A. Yes. Copper Kestrel argues that Asterglen could not seek $480,000 without complying with it.

Q. Does the interference claim against Meridian involve the same events?

A. It involves the June 14 scope, July 8 communications, configuration activity, July 18 audit, and July 22 consequences. Its legal elements differ, but the evidence overlaps substantially.

Q. If Count I were resolved, would the witness testimony become irrelevant?

A. No. The July 8 accounts and Meridian's understanding would remain relevant to Count II. Notice, cure feasibility, and interruption would remain relevant to the counterclaim.

Q. Could the $120,000 claim affect a final accounting between Asterglen and Copper Kestrel?

A. Yes, if both parties obtained enforceable awards.

Q. Does Copper Kestrel concede that any particular appellate result follows from this overlap?

A. No. That is a legal question. The testimony establishes the factual connections and the matters still unresolved in the district action.

Authentication and conclusion

Q. Are the provisioning records and interruption ledger maintained by Copper Kestrel?

A. Yes. They were made or collected by personnel with responsibility for those operations and were preserved for this litigation.

Q. Why was this excerpt filed with Asterglen's opposition?

A. The testimony contains admissions and disputed facts relevant to notice, cure feasibility, and claim overlap. It was filed as District ECF No. 49-2, an attachment to District ECF No. 49. Asterglen's use of excerpts does not adopt Copper Kestrel's account of the July 8 call.

The witness reviewed the identified excerpts and affirmed their accuracy subject to ordinary transcript corrections. Examination ended at 3:42 p.m.